

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Donovan	Team: Team # 6	CCRB Case #: 200612981	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/28/2006 8:30 PM	Location of Incident: 114th Street and 3rd Avenue	18 Mo. SOL 3/28/2008	Precinct: 23		
Date/Time CV Reported Thu, 09/28/2006 9:56 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 09/28/2006 9:56 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jose Roman	03076	890887	023 PCT
2. POM Christop Greiner	30355	930271	023 PCT
3. POM Joseph Curley	28295	928138	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jose Roman	Abuse: Sgt. Jose Roman stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Joseph Curley	Abuse: PO Joseph Curley frisked § 87(2)(b)	B . Alleged Victim Uncooperative
C . POM Joseph Curley	Abuse: PO Joseph Curley searched § 87(2)(b)	C . Alleged Victim Uncooperative
D . SGT Jose Roman	Abuse: Sgt. Jose Roman refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated
E . SGT Jose Roman	Abuse: Sgt. Jose Roman searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Substantiated
F . POM Christop Greiner	Abuse: PO Christopher Greiner refused to provide his shield number to § 87(2)(b)	F . Unsubstantiated
G . POM Christop Greiner	Abuse: PO Christopher Greiner frisked § 87(2)(b)	G . Unsubstantiated
H . POM Christop Greiner	Abuse: PO Christopher Greiner searched § 87(2)(b)	H . Unsubstantiated
I . POM Joseph Curley	Abuse: PO Joseph Curley refused to provide his shield number to § 87(2)(b)	I . Unsubstantiated
J . POM Christop Greiner	Abuse: PO Christopher Greiner threatened to arrest § 87(2)(b)	J . Unsubstantiated
K . POM Christop Greiner	Abuse: PO Christopher Greiner threatened to seize § 87(2)(b)'s property.	K . Unsubstantiated

Synopsis

On September 28, 2006, at 8:30pm on 114th Street and 3rd Avenue in Manhattan, Officer Joseph Curley, Officer Christopher Greiner and Sergeant Jose Roman stopped § 87(2)(b) and § 87(2)(b)'s vehicle that was standing in front of a fire hydrant (Allegation A). § 87(2)(b) alleged that PO Curley frisked and searched his brother, § 87(2)(b) (Allegations B and C). § 87(2)(b) asked Sgt. Roman for his badge number, but he did not respond to the request (Allegation D). Sgt. Roman conducted a search of the vehicle including the backseat (Allegation E). § 87(2)(b) requested PO Greiner's badge number, which he allegedly did not provide (Allegation F). PO Greiner frisked § 87(2)(b) and allegedly searched him (Allegations G and H). § 87(2)(b) alleged that he asked PO Curley for his badge number, which he did not provide (Allegation I). § 87(2)(b) alleged that PO Greiner said, "I could lock your asses up and take the car and have the car towed. Do you want me to do that?" He further stated, "I'm going to fucking lock you up" (Allegations J and K).

§ 87(2)(g) it is recommended Allegation A be *exonerated*. § 87(2)(g)

It is therefore recommended that Allegations B and C be closed *victim uncooperative*. Sgt. Roman admitted that he searched the vehicle while § 87(2)(b) and § 87(2)(b) were outside of the vehicle. § 87(2)(g) it is therefore recommended Allegation E be *substantiated*. § 87(2)(g)

It is therefore recommended that Allegations D, F, H and I be *unsubstantiated*. § 87(2)(g)

it is recommended that Allegation G be *unsubstantiated*. § 87(2)(g)

it is recommended Allegations J and K be *unsubstantiated*.

This case was assigned to Investigator Sarah Cornwell and was reassigned to Investigator Erin Donovan on June 19, 2007. On November 20, 2006 § 87(2)(b) decided to mediate his complaint, and the case was sent to the mediation unit on December 11, 2006. The case was returned to the investigator on February 23, 2007 from the mediation unit because the officers rejected mediation.

Summary of Complaint

On September 28, 2006, § 87(2)(b) filed a complaint with the CCRB via the call processing system (Enc. 9a-b). § 87(2)(b) was interviewed at the CCRB on November 20, 2006 (Enc.10a-k). There were no inconsistencies in his statements. His statement is summarized as follows.

On September 28, 2006, around 8:30 p.m., § 87(2)(b) and his brother, § 87(2)(b) were sitting in a stationary car at 114th Street and 3rd Avenue in Manhattan. § 87(2)(b) was in the driver's seat, and § 87(2)(b) was in the passenger side back seat. They were parked at a fire hydrant in § 87(2)(b) black Yukon Denali with tinted windows outside a public housing building for fifteen minutes until they saw lights in their rearview mirror. Three plain clothed male officers got out of a police car behind the Nelsons. A tall white officer in a green army jacket, later identified by the CCRB as PO Curley asked § 87(2)(b) for his license and registration. § 87(2)(b) asked if he had done anything wrong, and PO Curley said no. He took the license and registration, went back to the police car, and then returned to § 87(2)(b) car and asked him to get out of the car. PO Curley searched him. A Hispanic officer in a gray hoodie, later identified by the CCRB as Sgt. Roman approached the car and asked § 87(2)(b) what he was doing there while PO Curley searched § 87(2)(b). Sgt. Roman approached the car and told § 87(2)(b) to get out of the car, which he did. § 87(2)(b) asked if he'd done anything wrong and the officer said no and requested ID. § 87(2)(b) asked Sgt. Roman for his badge number but received no response. § 87(2)(b) approached the short white officer, later identified by the CCRB as PO Greiner who asked for his ID.

After § 87(2)(b) got out of the passenger side backseat, Sgt. Roman shined a flashlight into the car. § 87(2)(b) could not see Sgt. Roman the entire time he conducted the search, but he did see him first open the passenger side front door and shine his flashlight toward the driver's seat foot-area. The driver's side door was standing open from when § 87(2)(b) got out of the car. § 87(2)(b) did

not see Sgt. Roman put his arm inside the car with the flashlight, and did not know if he looked in the backseat. § 87(2)(b) asked PO Greiner to see his badge. PO Greiner ignored him and began to pat him down. § 87(2)(b) repeated his request to see an officer's badge. PO Greiner said, "You don't see these lights?"

PO Greiner searched § 87(2)(b)'s four pants pockets and two jacket pockets as § 87(2)(b) continued to ask for ID. § 87(2)(b) asked all three officers for ID, and none provided any throughout the incident. PO Greiner took § 87(2)(b)'s ID from his wallet and wrote his information down on a paper. He said, "I could lock your asses up and take the car and have the car towed. Do you want me to do that?" At another point, § 87(2)(b) stated that PO Greiner said, "I'm going to fucking lock you up." PO Greiner said he could have the car towed because it had out-of-state plates. The officers left without issuing any summonses or giving the Nelsons any documents. The incident took ten or fifteen minutes.

On November 20, 2006, § 87(2)(b) was shown three photo arrays. § 87(2)(b) said that he was not confident that he could recognize the Hispanic officer who looked in the car or the tall white officer, since it was dark, and he did not interact with them directly. He felt fairly certain that he could recognize the short white officer who searched him, and who allegedly made the discourteous and threatening remark to him. He marked "no," next to seventeen of the eighteen officers depicted on the three arrays, indicating that he did not recognize these officers. He marked "not sure" next to the officer in position one in array one. § 87(2)(b) stated that if this identification is correct, the officer in position one in array one was the officer who searched him and the subject of his allegations of discourtesy and threat of arrest. The officer whom § 87(2)(b) identified is Officer Christopher Greiner, one of the three officers indicated by the vehicle usage sheet to have been driving the car with the plate number reported by § 87(2)(b).

Results of Investigation

Attempts to contact victims

The CCRB called § 87(2)(b) seven times between the dates of November 1, 2006 and June 22, 2007. Letters were sent to § 87(2)(b) on March 29, 2007 and June 22, 2007. § 87(2)(b) did not cooperate with the investigation.

Officer Statement: Officer Christopher Greiner

On July 11, 2007, Officer Christopher Greiner was interviewed at the CCRB (Enc.14a-b). On September 28, 2006, PO Greiner worked from 3:00pm to 11:35pm. His assignment was Anti-Crime and he worked with PO Curley and Sgt. Roman. They were dressed in plainclothes and assigned to a black unmarked car. PO Greiner did not have his memo book with him and stated that there were no relevant entries. PO Greiner stated on the Stop, Question and Frisk Report (Enc. 11a-b) that § 87(2)(b) had actions indicative of engaging in violent crimes. It stated that § 87(2)(b) made furtive movements and had a bulge that was a cell phone. PO Greiner stated on the Stop, Question and Frisk Report (Enc.12a-13b) that § 87(2)(b) made furtive movements and a violent crime was suspected.

There was a vehicle car stop because there was a car parked at a fire hydrant with Canadian license plates. The vehicle was stationary when the officers approached. An individual, the CCRB identified as § 87(2)(b) was in the driver's seat and got out of the car to go into the backseat of the car. The officers identified themselves as police officers and § 87(2)(b) told them to "hold on." The officers asked him for his license and registration, which he did not provide. § 87(2)(b) refused to show the officers his license. PO Greiner looked inside the vehicle for weapons because § 87(2)(b) opened all four doors of the vehicle. PO Greiner never went inside of the vehicle. PO Greiner did not see any weapons when he looked inside of the car. PO Greiner did not recall if any other officers looked inside of the car.

There was another individual, the CCRB identified as § 87(2)(b) who came over to the vehicle. PO Greiner did not recall how long it was before § 87(2)(b) arrived at the vehicle. PO Greiner stated that the officers spoke to the individuals separately. The officers asked § 87(2)(b) if the car belonged to him and he stated that it was his car. § 87(2)(b) showed the officers his driver's license. No one produced any paperwork for the vehicle. The officers frisked both § 87(2)(b) and § 87(2)(b). PO Greiner did not recall which of the civilians he frisked. He stated that the civilian he frisked had a bulge in his waistband that was found to be a cell phone. PO Greiner stated that § 87(2)(b) and § 87(2)(b) were frisked as soon as the officers started to speak with them. PO Greiner stated that § 87(2)(b) and § 87(2)(b) were frisked because they were not cooperative.

and refused to stay at the location. Neither PO Greiner nor any officer searched § 87(2)(b) or § 87(2)(b). PO Greiner and PO Curley were directed by Sgt. Roman to leave the scene and prepare 250s. PO Greiner stated that § 87(2)(b) and § 87(2)(b) were not cooperative because they did not provide picture IDs and refused to comply with the officers' directions. They refused to answer the officers about what they were doing at the location. PO Greiner stated that the civilians "might have been" using profanity. Their behavior was "loud and disorderly." They talked loudly and asked why they were being stopped. § 87(2)(b) and § 87(2)(b) refused to stay at the location. They looked like they were unloading "stuff" into the building and kept going about their business while the officers talked with them. PO Greiner thought it was CD's that they were moving from the car to the building. The officers did not get § 87(2)(b) and § 87(2)(b) to stay at the car. The officers conducted the investigation while they moved around. No summonses were issued to § 87(2)(b) and § 87(2)(b) which was Sgt. Roman's decision.

PO Greiner stated that none of the civilians asked for his badge number or any other officer's badge number. The officers had their badges showing during the incident. PO Greiner nor any other officer threatened to neither arrest § 87(2)(b) or § 87(2)(b) nor threatened to tow their car. None of the officers used profanity during the incident.

Officer Statement: Sergeant Jose Roman

On July 12, 2007, Sgt. Jose Roman (male, Hispanic, § 87(2)(b), black hair, brown eyes) was interviewed at the CCRB (Enc.16a-b). On September 28, 2006, Sgt. Roman worked from 3:00pm to 12:44am and was assigned as the Anti-Crime supervisor. He worked with PO Greiner and PO Curley and was assigned to an unmarked black Chevy. They were dressed in plainclothes. Sgt. Roman did not have any relevant memo book entries.

On September 28, 2006, the officers were doing their crime patrol in the vicinity of the incident. The officer observed an SUV parked in front of a fire hydrant on the left side of 3rd Avenue, which runs northbound. The SUV had tinted windows and the officers wanted to know what they were doing in the neighborhood. The SUV had out of state license plates and Sgt. Roman has seen many stolen vehicles that had out of state license plates. The officers observed the vehicle for a few seconds. There were two individuals in the vehicle, one was in the driver's seat § 87(2)(b) and the other individual was in the passenger's seat § 87(2)(b). The officers parked their car directly behind the SUV and approached the vehicle. The front two windows of the SUV were down and the back windows were rolled up. Sgt. Roman approached the SUV and saw § 87(2)(b) moving around and reaching for something without the officers giving him any instructions. § 87(2)(b) also moved around in the vehicle. They looked as if they were reaching for "stuff" and rocking back and forth. Their hands were around their lap area so Sgt. Roman could not see if they were reaching for anything. Sgt. Roman ordered § 87(2)(b) and § 87(2)(b) to exit of the vehicle. Sgt. Roman stood on the passenger's side of the vehicle while he looked inside of the vehicle. Inside of the SUV there were magazines stacked up. The magazines obstructed Sgt. Roman's view inside the vehicle. Sgt. Roman opened the back passenger side door because he could not see through the magazines that were piled in the vehicle. Sgt. Roman wanted to make sure that there were no other individuals in the vehicle so he moved the magazines. Sgt. Roman pushed the magazines over with his arm to see if there was anyone else in the vehicle. There was no one else inside of the vehicle so he closed the door. Sgt. Roman did not search inside the car.

PO Greiner and PO Curley frisked § 87(2)(b) and § 87(2)(b) for weapons before Sgt. Roman spoke to them. They did not find any weapons. The officers filled out 250 reports. The officers brought § 87(2)(b) and § 87(2)(b) to the back of the vehicle. Sgt. Roman asked them if they lived in the area and if they had ID. Sgt. Roman, PO Greiner and PO Curley all had their shields out. None of the civilians asked for any officer's badge number. Both § 87(2)(b) and § 87(2)(b) provided their IDs. Neither Sgt. Roman nor any other officer threatened to arrest either of the civilians or have their car towed. The officers did not use profanity during the incident. § 87(2)(b) and § 87(2)(b) were not issued any summonses because Sgt. Roman realized that they were just sitting in the car talking. Sgt. Roman decided not to issue a summons for the vehicle being parked at a fire hydrant. As an anti crime sergeant, Sgt. Roman is more focused on preventing violent crimes and making arrests. § 87(2)(b) and § 87(2)(b) were cooperative with the officers throughout the incident. The entire incident took about 10 minutes.

Officer Statement: Officer Joseph Curley

On August 2, 2007, Officer Joseph Curley (male, white, § 87(2)(b), black hair, brown eyes) was interviewed at the CCRB (Enc.18a-b). On September 28, 2006, PO Curley worked from 3:00pm to 11:35pm and was assigned to Anti-Crime. PO Curley worked with Sgt. Roman and PO Greiner and was dressed in plainclothes. They were assigned to an unmarked black impala. In his memo book it stated at 9:00pm there was a car stop at East 113th Street and 3rd Avenue. At 9:05pm there were two stop and frisk reports prepared.

On September 28, 2006, PO Curley observed a vehicle parked in front of a fire hydrant. It appeared as if the vehicle was unoccupied. All the officers exited the vehicle and approached the vehicle and saw that there was a driver and a passenger in the backseat. PO Curley approached the passenger's side of the vehicle where the windows were closed. PO Greiner asked the driver, identified by the CCRB as § 87(2)(b) what they were doing and who owned the vehicle. The officers showed their badges around their neck when they first approached the car and then put their badges away soon after. The civilians did not question whether they were officers. PO Curley did not hear the exact conversation between PO Greiner and § 87(2)(b). PO Curley could not see inside the vehicle because there were tinted windows and that is why they asked § 87(2)(b) and § 87(2)(b) to step out of the car. All the windows of the vehicle were tinted. PO Curley knew there was a passenger in the backseat because he saw the silhouette of a person. PO Curley did not see what § 87(2)(b) and § 87(2)(b) were doing while in the vehicle.

The vehicle had Canadian license plates and the passengers could not produce paperwork for the vehicle. The officers asked both § 87(2)(b) and § 87(2)(b) to step out of the vehicle. They brought them to the back of the vehicle so they were not standing in traffic. The officers asked § 87(2)(b) and § 87(2)(b) for ID, which they both provided. The officers frisked both of the individuals for their safety to see if they had any weapons because PO Curley did not want to get shot. PO Curley stated that he feared for his safety because of the Canadian license plates. PO Curley did not recall which individual he frisked. Neither PO Curley nor any other officer searched either § 87(2)(b) or § 87(2)(b). § 87(2)(b) and § 87(2)(b) were cooperative with the officers. They stayed near the vehicle the entire time and did not move away from the vehicle. Neither Sgt. Roman nor any other officer ever used a flashlight to look inside of the vehicle. The civilians never asked for PO Curley's badge number or any other officer's badge numbers. Neither PO Curley nor any other officer threatened to arrest them or have their car towed. The officers did not use profanity during the incident. There was no summons issued for parking in front of a fire hydrant because the officers did not carry summonses with them.

Police Department Documents

The Tour 3 roll call (Enc.19a-i) from the 23rd Precinct indicated that Sgt. Roman, PO Curley and PO Greiner all worked together on September 28, 2006.

Officer/Complainant CCRB Histories

Sgt. Roman has no substantiated cases with the CCRB in his 21 years of service to the NYPD (Enc. 5a-b). PO Greiner has no substantiated cases with the CCRB in his 5 years of service to the NYPD (Enc. 6a). PO Curley has one substantiated allegation from CCRB Case# 200513891 for refusing to provide his name and shield and the NYPD disposition was instructions (Enc. 7a).

§ 87(2)(b) has never filed a complaint with the CCRB (Enc. 8a).

Civilian Criminal History

§ 87(2)(b) has no criminal history.

Conclusions and Recommendations

Officer Identification

PO Greiner, Sgt. Roman and PO Curley were identified by § 87(2)(b) through a photo array and the Tour 3 roll call indicated that they worked together and were assigned to Anti-Crime on September 28, 2006. Their identity was further confirmed by their CCRB statements and memo book entries regarding the incident.

Undisputed Facts

PO Greiner, PO Curley and Sgt. Roman stopped § 87(2)(b) and § 87(2)(b)'s vehicle on 114th Street and 3rd Avenue in Manhattan, NY. The officers approached the vehicle and asked both § 87(2)(b) and § 87(2)(b) to step out of the vehicle. Sgt. Roman searched the vehicle while § 87(2)(b) and § 87(2)(b) were outside of the car. PO Greiner frisked § 87(2)(b) and PO Curley frisked § 87(2)(b). § 87(2)(b) and § 87(2)(b) provided the officers with their IDs and were released without any summonses issued.

Disputed Facts

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Assessment of Evidence

It is undisputed that Sgt. Roman, PO Curley and PO Greiner stopped § 87(2)(b) and § 87(2)(b)'s vehicle because it was parked in front of a fire hydrant. PO Curley asked § 87(2)(b) to get out of the car and allegedly searched him. PO Curley stated that he never searched § 87(2)(b) and there is not sufficient evidence to determine whether the search occurred. PO Curley admitted that he frisked § 87(2)(b) for his safety because he did not want to "get shot." When the CCRB asked PO Curley why he feared for his safety he stated because of the Canadian license plates. The CCRB did not obtain a formal statement from § 87(2)(b).

§ 87(2)(b) alleged that PO Greiner patted him down and searched through all his pockets. PO Greiner stated that § 87(2)(b) and § 87(2)(b) were frisked because there was a bulge in § 87(2)(b)'s waistband. He also stated that they were not cooperative and refused to stay at the location. § 87(2)(g)

§ 87(2)(b) PO Greiner stated that § 87(2)(b) and § 87(2)(b) were loud and disorderly while both Sgt. Roman and PO Curley agreed that the civilians were cooperative throughout the incident. PO Greiner indicated that the civilians refused to stay at the location and moved items back and forth from the vehicle into a building. Both of the other officers explained that the civilians remained at the vehicle throughout the incident and never attempted to leave. § 87(2)(g)

PO Curley asserted that he frisked the civilians because he did not want to get shot, but he could not articulate a specific reason why he feared § 87(2)(b) or § 87(2)(b) would have shot him. He also stated that both § 87(2)(b) and § 87(2)(b) were cooperative with the officers further showing that they did nothing to make him fear for his safety.

§ 87(2)(b) alleged that he repeatedly asked all three of the officers for their badge numbers throughout the incident and none of them responded to his requests. Sgt. Roman, PO Curley and PO Greiner stated that § 87(2)(b) never asked them for their badge numbers. The officers stated that they had their shields out throughout the incident and there is no evidence that suggests they did not provide their badge numbers to § 87(2)(b) § 87(2)(g)

Sgt. Roman admitted to the CCRB that once § 87(2)(b) and § 87(2)(b) were out of the car he used his flashlight to look inside of the car to make sure there were no other passengers in the car. He stated that there were piles of magazines in the backseat of the car and he moved them to make sure no one else was inside of the car. Once he saw that there was no one else inside of the vehicle he closed the door. § 87(2)(g)

§ 87(2)(b) PO Greiner thought there might have been CD's in the car, but was not sure. PO Curley said the windows were tinted so he could not see anything inside the vehicle.

§ 87(2)(b) alleged that PO Greiner said, "I could lock your asses up and take the car and have your car towed. Do you want me to do that?" He also said, "I'm going to fucking lock you up." § 87(2)(g)

§ 87(2)(g)

The Stop Frisk and Question reports that were prepared by PO Greiner § 87(2)(g) stated that both § 87(2)(b) and § 87(2)(b) made furtive movements and that there was a violent crime suspected. § 87(2)(g)

Allegation A) Sgt. Jose Roman stopped § 87(2)(b) and § 87(2)(b)

§ 87(2)(g) it is therefore recommended that Allegation A be *exonerated*.

Allegation B) PO Joseph Curley frisked § 87(2)(b)

Allegation C) PO Joseph Curley searched § 87(2)(b)

PO Curley admitted that he frisked the individual determined to be § 87(2)(b) for his safety, but did not articulate specific reasons why he feared for his safety. § 87(2)(g)

It is therefore recommended that Allegations B and C be closed as *victim uncooperative*.

Allegation D) Sgt. Jose Roman refused to provide his shield number to § 87(2)(b)

Allegation F) PO Christopher Greiner refused to provide his shield number to § 87(2)(b)

Allegation I) PO Joseph Curley refused to provide his shield number to § 87(2)(b)

§ 87(2)(g) The officers stated that their shields were showing throughout the incident and that § 87(2)(b) never asked for their shield numbers. It is therefore recommended that Allegations D, F and I be *unsubstantiated*.

Allegation E) Sgt. Jose Roman searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

In *New York Search and Seizure*, Barry Kamins states “once the occupants are outside the car, New York courts will find that a search is conducted when an officer sticks his head inside the car to conduct a visual inspection... or places his flashlight laden hand inside the vehicle in order to better observe parts of the vehicle” (Enc.3a). § 87(2)(g)

According to Kamin’s, “under the automobile exception, the police may search a vehicle and any containers found inside when they have probable cause to believe that it contains contraband, a weapon or evidence of a crime... Probable cause can be supplied by statements from the victim of a crime, citizen informants, confidential informants, anonymous tips, a passenger in the car or the defendant himself” (Enc. 1a).

According to Sgt. Roman’s testimony, there was a large amount of magazines stacked in the rear seat and the windows were tinted, prompting him to search the back seat of the car to see if there was anyone else inside. § 87(2)(g)

it is therefore recommended that Allegation E be *substantiated*.

Allegation G) PO Christopher Greiner frisked § 87(2)(b)

As noted above, PO Greiner stated that he frisked § 87(2)(b) based on a bulge in his waistband that turned out to be a cell phone. According to Kamin's *New York Search and Seizure* "the observation of a waistband bulge, alone, is insufficient to establish reasonable suspicion to justify a stop and frisk" (Enc. 2a). § 87(2)(g)

According to Patrol Guide Procedure 212-11 Stop and Frisk, a frisk should be performed "if you reasonably suspect you or others are in danger of physical injury." PO Greiner never articulated any fear for his safety. § 87(2)(g)

It is therefore recommended that Allegation G be *unsubstantiated*.

Allegation H) PO Christopher Greiner searched § 87(2)(b)

Allegation J) PO Christopher Greiner threatened to arrest § 87(2)(b)

Allegation K) PO Christopher Greiner threatened to seize § 87(2)(b)'s property.

PO Greiner denied the allegations of searching § 87(2)(b) threatening to arrest him, and threatening to seize the vehicle. § 87(2)(g)

It is therefore recommended Allegations H, J and K be *unsubstantiated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: